



2025:CGHC:1071

AFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

CR No. 4 of 2025

1 - Hemsagar S/o Late Shri Kunjbihari Pradhan Aged About 60 Years

2 - Soumitri D/o Late Shri Kunjbihari Pradhan Aged About 56 Years

Both are R/o Village Khamharpali, Tahsil Saraipali, District Mahasamund, Chhattisgarh

3 - Surekha D/o Late Shri Kunjbihari Pradhan Aged About 58 Years W/o Alekh Sahu, R/o Village Baradoli, Post Patsendri, Tahsil Saraipali, District Mahasamund, Chhattisgarh

4 - Soubhagini D/o Late Shri Kunjbihari Pradhan Aged About 54 Years W/o Rukman Pradhan, R/o Ghuchapali, Post Maldamal, Tahsil Saraipali, District Mahasamund, Chhattisgarh

5 - Sudeshtha D/o Late Shri Kunjbihari Pradhan Aged About 52 Years W/o Shyam Pradhan, R/o Village Artunda, Post Gerra, Tahsil Saraipali, District Mahasamund, Chhattisgarh

... Applicants

versus

**1 - Suruchi (Now Died) D/o Late Shri Kaiwal Pradhan, W/o Bhojram Pradhan,
Through Legal Representatives-**

2 - Saroj Kumar Pradhan S/o Bhojram Pradhan Aged About 40 Years

3 - Manoj Kumar Pradhan S/o Bhojram Pradhan Aged About 35 Years

Both are R/o Village Lambarjuna, Tahsil Padampur, District Bargarh (Odisha)

4 - State of Chhattisgarh Through The Collector Mahasamund, District Mahasamund, Chhattisgarh

... Respondents

For Applicants	: Mr. Raghvendra Pradhan, Advocate
For State	: Mr. Dilman Rati Minj, GA

Hon'ble Shri Justice Deepak Kumar Tiwari
Order On Board

08/01/2025

1. This Revision Petition has been filed against the order dated 10.09.2024 passed by the Civil Judge, Senior Division, Saraipali, District Mahasamund (C.G.), whereby the application preferred under Order 22 rule 3 read with Section 151 of the CPC along with Section 5 of the Limitation Act has been allowed, though no application has been preferred in terms of Order 22 Rule 9 of the CPC for setting aside the abatement.
2. Learned counsel for the applicants submits that original plaintiff-Suruchi has filed the Civil Suit for partition and separate possession. During the pendency of the said Civil Suit, on 02.05.2022, the sole plaintiff died and therefore, the legal representatives of the sole plaintiff have preferred an application under Order 22 Rule 3 read with Section

151 of the CPC along with Section 5 of the Limitation Act, as the application has not been preferred within a period of 90 days after death of the sole plaintiff, so the Suit is abated but no application has been filed in terms of Order 22 Rule 9 of the CPC for setting aside the abatement and without any such application, the trial Court has allowed the aforesaid application and set aside the abatement which is not according to law, therefore, he prays to allow this Revision.

3. Heard learned counsel for the petitioner at length and also perused the documents annexed with the Revision carefully.
4. Order 22 Rule 9 of the CPC deals with the effect of abatement or dismissal. For the sake of brevity, the said provision is reproduced below:-

“9. Effect of abatement or dismissal.- (1) Where a suit abates or is dismissed under this Order, no fresh suit shall be brought on the same cause of action.

(2) The plaintiff or the person claiming to be the legal representative of a deceased plaintiff or the assignee or the receiver in the case of an insolvent plaintiff may apply for an order to set aside the abatement or dismissal; and if it is proved that he was prevented by any sufficient cause from continuing the suit, the Court shall set aside the abatement or dismissal upon such terms as to costs or otherwise as it thinks fit.

(3) The provisions of section 5 of the Indian Limitation Act, 1877 (15 of 1877) Now See The Limitation Act, 1963 (36 of 1963), shall apply to applications under sub-rule (2).”

5. Reading of the aforesaid provision of Order 22 Rule 9(2) of the CPC makes it clear that an application is to be made and not to be filed the word 'may' apply shows that the application can be orally made.
6. In the case of **Mithailal Dalsangar Singh And Others vs. Annabai Devram Kini And Others**¹, the Hon'ble Supreme Court has observed that if the application of delay is available on record then even without filing application under Order 22 Rule 9 of the CPC, the prayer for setting aside can be considered and allowed. The Hon'ble Supreme Court has materially observed at Paras 8 and 9 which read as under:-

“8. Inasmuch as the abatement results in denial of hearing on the merits of the case, the provision of abatement has to be construed strictly. On the other hand, the prayer for setting aside an abatement and the dismissal consequent upon an abatement, have to be considered liberally. A simple prayer for bringing the legal representatives on record without specifically praying for setting aside of an abatement may in substance be construed as a prayer for setting aside the abatement. So also a prayer for setting aside abatement as regards one of the plaintiffs can be construed as a prayer for setting aside the abatement of the suit in its entirety. Abatement of suit for failure to move an application for bringing the legal representatives on record within the prescribed period of limitation is automatic and a specific order dismissing the suit as abated is not called for. Once the suit has abated as a matter of law, though there may not have been passed on

1 (2003) 10 SCC 691

record a specific order dismissing the suit as abated, yet the legal representatives proposing to be brought on record or any other applicant proposing to bring the legal representatives of the deceased party on record would seek the setting aside of an abatement. A prayer for bringing the legal representatives on record, if allowed, would have the effect of setting aside the abatement as the relief of setting aside abatement though not asked for in so many words is in effect being actually asked for and is necessarily implied. Too technical or pedantic an approach in such cases is not called for.”

“9. The courts have to adopt a justice oriented approach dictated by the upper most consideration that ordinarily a litigant ought not to be denied an opportunity of having a lis determined on merits unless he has, by gross negligence, deliberate inaction or something akin to misconduct, disentitled himself from seeking the indulgence of the court. The opinion of the trial Judge allowing a prayer for setting aside abatement and his finding on the question of availability of 'sufficient cause' within the meaning of sub-rule(2) of Rule (9) of Order 22 and of Section 5 of the Indian Limitation Act, 1963 deserves to be given weight, and once arrived at would not normally be interfered with by superior jurisdiction.”

7. Reverting back to the facts of the present case, if no such application has been filed, then the fault of non-filing of application is not attributable to the applicants but it was the legal duty of their counsel to file application

under Order 22 Rule 9 of the CPC. It is well settled that the litigants should not be made to suffer for the fault of the counsel.

8. Learned trial Court rightly applied the justice-orientated approach and places reliance in the matter of **N. Balakrishnan vs. M. Krishnamurthy**², wherein it has been observed that in every case of delay, there can be some lapse on the part of the litigant concerned. That alone is not enough to turn down his plea and to shut the door against him. The Court must show utmost consideration to the suitor as the suits relates to the partition and separate possession.
9. So considering all these aspects, this Court is of the view that the legal representative has shown sufficient cause for condonation of delay and the trial Court has rightly condoned the delay and set aside the abatement. When a prayer for bringing the legal representatives on record is allowed, it amounts to setting aside the abatement.
10. In view of such, this Revision fails and is hereby dismissed.

Sd/-

(Deepak Kumar Tiwari)
Judge

Priyanka

2 (1998) 7 SCC 123

CR No. 4 of 2025**Headnote**

When a prayer for bringing the legal representatives on record is allowed, it amounts to setting aside the abatement.

शीर्ष टिप्पण

जब विधिक प्रतिनिधियों को अभिलेख पर लाने की प्रार्थना को स्वीकार किया जाता है तो यह वाद के उपशमन को अपास्त किये जाने के समान होगा।